

SYNTHETIC DOCUMENT - fictional content generated for testing. Not a real legal document.

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of March 15, 2025 ("Effective Date") by and between BlueCrest Solutions, Inc., a California corporation with its principal place of business at 1452 Redwood Drive, San Francisco, California 94107 ("Client"), and Apex Development Group LLC, a Delaware limited liability company, with its principal office at 3621 Hawthorne Lane, Irvine, California 92614 ("Service Provider"). Client and Service Provider may be referred to individually as a "Party" or collectively as the "Parties."

RECITALS

WHEREAS, Client desires to retain Service Provider to perform certain services as detailed herein; and

WHEREAS, Service Provider agrees to perform such services in accordance with the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the Parties agree as follows:

1. DEFINITIONS

1.1 "Services" means the design, development, implementation, and related consulting work specified in Statements of Work ("SOWs") executed under this Agreement.

1.2 "Deliverables" means any tangible or intangible work product, including but not limited to software, documentation, reports, or other materials, that Service Provider is obligated to deliver as specified in applicable SOWs.

1.3 "Confidential Information" means any non-public information disclosed by either Party to the other, in any form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

2. SCOPE OF SERVICES

2.1 Services. Service Provider agrees to perform the Services described in one or more SOWs executed by the Parties. Each SOW shall reference this Agreement and shall be governed by the terms herein.

2.2 Change Orders. Any changes to Services or Deliverables must be documented in a written change order signed by both Parties.

3. TERM AND TERMINATION

3.1 Term. This Agreement shall commence on the Effective Date and continue through March 14, 2027, unless terminated earlier pursuant to Section 3.2.

3.2 Termination for Convenience. Either Party may terminate this Agreement or any SOW for any reason upon thirty (30) days' prior written notice to the other Party.

3.3 Termination for Cause. Either Party may terminate this Agreement or any SOW immediately upon written notice if the other Party materially breaches any provision and fails to cure such breach within fifteen (15) days after receipt of notice.

3.4 Effect of Termination. Upon termination, Service Provider shall deliver to Client all completed and in-progress Deliverables, and Client shall pay for all Services rendered through the termination date, subject to the payment terms herein.

4. PAYMENT TERMS

4.1 Fees. Client shall pay Service Provider the fees specified in each SOW. Unless otherwise

specified, all amounts are in U.S. Dollars.

4.2 Invoicing. Service Provider shall invoice Client periodically in accordance with milestones described in the applicable SOW.

4.3 Payment Milestones. Payment milestones under each SOW shall be outlined in a generally descriptive manner, such as: (a) initial deposit upon SOW execution, (b) progress payment upon preliminary deliverable acceptance, (c) final payment upon project completion. Exact dates or quantitative metrics for milestone achievement may be mutually agreed upon in each SOW, but are deliberately left flexible to accommodate evolving project needs.

4.4 Payment Terms. Client shall pay undisputed invoices within thirty (30) days of receipt. Late payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

4.5 Expenses. Unless otherwise agreed, Client shall reimburse Service Provider for reasonable and pre-approved out-of-pocket expenses incurred in performing Services.

5. OWNERSHIP AND LICENSES

5.1 Ownership. Unless otherwise agreed in writing, all Deliverables created solely by Service Provider under this Agreement shall be the exclusive property of Client upon full payment.

5.2 License to Pre-existing Materials. Service Provider retains ownership of its pre-existing intellectual property and hereby grants Client a non-exclusive, non-transferable license to use any such materials incorporated into Deliverables solely for Client's internal business purposes.

6. CONFIDENTIALITY

6.1 Obligations. Each Party agrees to maintain the confidentiality of Confidential Information received from the other Party and to use it only for purposes of performing this Agreement.

6.2 Exclusions. Confidential Information shall not include information that is (a) publicly known without breach; (b) lawfully received from a third party; (c) independently developed without use of the other Party's Confidential Information; or (d) required to be disclosed by law or court order.

6.3 Duration. Confidentiality obligations shall survive termination of this Agreement for a period of three (3) years.

7. WARRANTIES AND DISCLAIMERS

7.1 Service Provider warrants that Services will be performed in a professional and workmanlike manner consistent with industry standards.

7.2 EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

8. INDEMNIFICATION

8.1 By Service Provider. Service Provider agrees to indemnify, defend and hold harmless Client and its officers, directors, employees, and agents from any claims, damages, liabilities, or expenses arising out of Service Provider's gross negligence or willful misconduct.

8.2 By Client. Client agrees to indemnify, defend and hold harmless Service Provider and its officers, directors, employees, and agents from any claims arising from Client's misuse of Deliverables or breach of this Agreement.

9. LIMITATION OF LIABILITY

9.1 EXCEPT FOR LIABILITY ARISING FROM A PARTY'S WILLFUL MISCONDUCT OR INDEMNIFICATION OBLIGATIONS, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, OR LOST PROFITS, ARISING OUT OF OR RELATED TO THIS AGREEMENT.

9.2 EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE AMOUNTS PAID BY CLIENT TO SERVICE PROVIDER UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTH PERIOD PRECEDING THE CLAIM.

10. DISPUTE RESOLUTION

10.1 Negotiation. The Parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement promptly by negotiation between executives who have authority to settle the controversy.

10.2 Mediation. If negotiation fails, the Parties agree to submit the dispute to non-binding mediation in San Francisco, California, before resorting to litigation.

10.3 Litigation. If mediation is unsuccessful, either Party may bring an action in the Superior Court of the State of California, County of San Francisco. The Parties consent to exclusive jurisdiction and venue in such courts.

11. MISCELLANEOUS

11.1 Independent Contractors. The relationship of the Parties is that of independent contractors. Nothing herein creates a partnership, joint venture, or agency relationship.

11.2 Assignment. Neither Party may assign or delegate its rights or obligations without prior written consent of the other Party, except to a successor in interest by merger or acquisition.

11.3 Notices. All notices shall be in writing and delivered by email (with confirmation), certified mail, or courier to the addresses listed above or such other address as notified in writing.

11.4 Force Majeure. Neither Party shall be liable for failure or delay due to causes beyond reasonable control, including but not limited to natural disasters, acts of government, or labor disputes.

11.5 Entire Agreement. This Agreement, together with any SOWs, constitutes the entire understanding between the Parties and supersedes all prior agreements.

11.6 Amendments. No amendment shall be effective unless in writing signed by authorized representatives of both Parties.

11.7 Severability. If any provision is held invalid or unenforceable, the remainder shall remain in effect.

IN WITNESS WHEREOF, the Parties have executed this Master Services Agreement as of the Effective Date.

BLUECREST SOLUTIONS, INC.

APEX DEVELOPMENT GROUP LLC

By: _____

By: _____

Name: Laura M. Kent

Name: David R. Mahoney

Title: Chief Operating Officer

Title: Managing Member

Date: March 15, 2025

Date: March 15, 2025

EXHIBIT A

Sample Statement of Work (SOW)

This Statement of Work ("SOW") is issued pursuant to the Master Services Agreement dated March 15,

2025, between BlueCrest Solutions, Inc. ("Client") and Apex Development Group LLC ("Service Provider").

1. Project Description: Development of a custom customer relationship management (CRM) software module tailored to Client's internal sales processes.

2. Scope of Services:

- Requirements gathering and analysis.
- Software design and architecture.
- Coding, testing, and quality assurance.
- Deployment and user training.

3. Deliverables:

- Functional requirements document.
- Design specifications.
- Working software modules.
- Training materials.

4. Payment:

- 30% due upon SOW execution.
- 40% due upon preliminary deliverable acceptance (e.g., design approval).
- 30% due upon final project completion and acceptance.

5. Timeline:

- Project start: April 1, 2025.
- Preliminary deliverable due: August 1, 2025.
- Final completion: December 15, 2025.

6. Acceptance Criteria:

- Deliverables conform to specifications.
- Successful completion of agreed test cases.

7. Contact Persons:

Client: Jessica R. Halston, Project Manager, jhalston@bluecrest.com

Service Provider: Martin Q. Ellis, Project Lead, mellis@apexdev.com

End of SOW